

Smt. Kalpna Khanna v. State of U.P.

High Court of Judicature at Allahabad · Single Judge · 3 January 2011 · Application u/s 482 No. 39741 of 2010 · **Interim stay of coercive action; listed with connected 482**

HEADNOTE

On a Section 482 CrPC application to quash a pending electricity-theft trial, the applicant argued that Clause 8.1(b)(ii) of the Electricity Supply Code, 2005 bars booking theft for mere meter-seal breakage and that a Junior Engineer was not competent to lodge the Section 135 FIR. The High Court granted time for affidavits, directed listing with a connected 482 application, and stayed coercive action till the next date of listing, without deciding the merits.

FACTUAL SUMMARY

Smt. Kalpna Khanna sought quashing of Special Sessions Trial No. 57/2006 before the Special Judge, E.C. Act, Moradabad. The allegation was that the energy meter's seal was found tampered (broken). She argued that Clause 8.1(b)(ii) of the Electricity Supply Code, 2005 bars booking theft for mere breakage of window glass or an old seal, so no FIR could be lodged, and that a Junior Engineer had lodged it though a 5 October 2004 Government Order confined Section 135 competence to the Assistant Engineer.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

482 CrPC listing and interim protection in s.135 trial

HOLDING

The High Court did not decide the quashing prayer. It granted two weeks for the licensee's counter-affidavit and one week thereafter for rejoinder, directed listing with connected Application u/s 482 No. 6194/2010, and stayed coercive action against the applicant in Special Sessions Trial No. 57/2006 till the next date of listing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER CLAUSE 8.1(B)(II) OF THE ELECTRICITY SUPPLY CODE, 2005 BARS BOOKING A THEFT CASE FOR MERE BREAKAGE OF THE METER SEAL OR WINDOW GLASS

Applicant's contention only; clause number as stated in the order, not decided ¶ 1

NOT DECIDED — WHETHER A JUNIOR ENGINEER WAS COMPETENT TO LODGE AN FIR UNDER SECTION 135 OF THE ELECTRICITY ACT, 2003

Applicant relied on G.O. dated 5 October 2004 confining competence to the Assistant Engineer; not decided ¶ 1

NOT DECIDED — WHETHER SPECIAL SESSIONS TRIAL NO. 57/2006 SHOULD BE QUASHED UNDER SECTION 482 CRPC

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